

Smt Bharati W/O Suryanarayana vs Dr Suryanarayana S Kattimani on 18 October, 2011

Author: Manjula Chellur

Bench: Manjula Chellur

MF A No20819/200

IN THE HIGH COURT OF KARNATAKA
CIRCUIT BENCH AT DHARWAD

DATED THIS 18 DAY OF OCTOBER
2011

PRESENT
THE HONBLE MRS JUSTICE MANJULA CHILLUR
AND
THE HONBLE MR. JUSTICE V. SURESH
APPEAL NO. 31 OF 2008

M, FA.No.20819/2008 (MC)

BETWEEN:

Smt Bharati,
W/o Suryanarayana Kattimani
Aged about 45 years,
Ccc Private Services
R/o Vidyanagar.
Dharwad

APPELLANT

[By Shri Prafulla S. Naik, Advocate]

Respondent
Appealed against the order
(C.G.) of the District Court, Dharwad
dated 18.10.2011 in the case of
U. Puja Chitra Shrinivasappa

for, F01N I

For the Respondent: Mr. S. K. Iyer
For the Appellant: Mr. M. Shk. Ari I

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This MFA Is filed under SectIon 28(1) of the Hindu Marriage Act. 1955. prayIng to set asid e the Judgment and deere dated 2.6.2007 passed In MC NC . 101/2003 passed b the Principal C lvii .Judge (Sr. Dii). Ilubil, tiled u/s 13 1 (1 B) w cording to Hindu Marriage Act 195 5 and etc. This appeal coming on for hea ting this day. MANJULA ('HELLUR J . delivered the following:

JUDGMENT

The appellant herein by name Smt Bharatl is the wife of one Dr Suryanarayana Kattim ani who is the respondent in the present appeal The marriage between the parties being solemnized according to the customary rite at the Railway Kalyana Mantap. Hubli HI 28 12 '983 is the dispute. birth

n) of two children a daughter and a son by name Pooja and mayak out of the said iedlock Is also w t in I sp ite. 1 s 11%) mt in dkputc tlu I is in the iate ef 'nair age .1 tht i p 11 it siihtlm'i pcickm.tlc p'liii 'as S b:ars vi'ttie rcs t oon' lit 'ldtr th .ippell ii mi 1w ' .i to I- . (-.11% TIt . " .Ci vit lk! P ' " rkuç i Gulbarga The parents of the appellant were living at Hubli. The younger sister of n %pondent husband by name Sharanamma was given in mantiige to patei xml uric Ic of appellant by name Dr Siddechwar about 8 to 10 rears earlier to the marriage between the appellant and the respondent.

2. According to the appellant. they led a happy marital life in the matrimonial house at Gulbarga for about 15 days. Thereafter. in order to have good education for the children the appellant-wife stayed in the house belonging to the respondent-husband consigned by him at Qulbirga and it was respondent husband who used to visit Gii1bara 'met at ni ice a week or so see his wife and himself. 'It e rt pondentl ta) d a IJKP -I pita1 as Mt 11 aJ O:11w ti in Rajankeiltu .ii'd .it 5nlepeth tot about 4 Wht' " i T llt nil ,. innll:ttii j1-

" i p a 'u it ci '-hUt strangely and she nevti showed love and affection to hhn and he was diet ui bed with said attitude of the wife Because ol this, he tnok his wife :uid children to Suk'pet In March 1994 and stayed there till the appellant wife abandoned the company of him along with the children in March 1995

5. Since the appellant-wife did not indicate any interest to return back to her matrimonial home and intentionally deserted the company of her husband without showing any love and affection, the respondent-husband had no other go than to approach Court for dissolution of the marriage and for a decree of divorce putting an end to the marriage between him and the appellant wife.

the sister of her husband Sharananima the relation between herself and the respondent was strained. As a matter of fact, immediately after the marriage the respondent husband is said to have informed the appellant wife that his main intention of marrying her was to torture and cause agony to her in order to take revenge for the misery suffered by his sister Sharananima at the hands of her

husband Dr. Slickeshwar the junior uncle of - the appellant wife She narrates that the period of six months stay in his parental house was horrifying as not only the husband but all other family members tortured her mentally and physically. According to her, the husband was behaving with her with utmost cruelty on account of the instigation of his family members. His affidavit. (In the margin, the wife and sister Sharanamma. As a result of the appellant's abuse) (read the allegations in the affidavit of the wife and sister Sharanamma. As a result of the appellant's abuse). Between her junior uncle Dr. Siddeshwar and his wife Sharanamma was not cordial. There used to be frequent quarrels between them, therefore Sharanamma used to live in her parental house at Gulbarga most of the time. The appellant denies the averment that she along with her children was comfortably living in the house constructed by the respondent husband at Gulbarga. According to her parents of the husband were also living with her and Sharanamma used to visit their house frequently. and used to abuse the appellant Bharathi for no fault of her and thus making her miserable all the time. It is alleged that the respondent husband even beat her on several occasions at the instance of his sister and parents. According to her, in all this torture she was forced to live in and upbrought him as a dutiful son. The wife and sister Sharanamma. As a result of the appellant's abuse.

7. All her dreams were shattered when she went to Rajanakolur to live with him and learnt that her husband addicted to alcohol. He went to the extent of throwing liquor on her face and tell her that she has to change her attitude. Whenever he was angry he would throw food which was served to him finding fault with the wife for no fault of her. As she was afraid of the stigma being attached to her, she had to put up with him as she had no good financial support from her parents as they hail from a middle class family. When he was transferred to Shahapur in the year 1990, she followed him. There also harassment and misery continued. He persistently insisted that he is either has to advise his brother Dr. Siddeshwar to accept his sister's reforming himself, or until addiction is cured then only he could accept her. But after a long time, the wife and sister Sharanamma. As a result of the appellant's abuse. (In the margin, the wife and sister Sharanamma. As a result of the appellant's abuse). His wife became more strained and this reflected on the marital life of Smt Bharati at Rajanakolur. As she was good looking, the respondent husband even tortured her suspecting her fidelity. Though he was able to put up with the other physical and mental tortures of her husband and family members, but suspecting her fidelity was too much to bear. According to her, after informing the respondent husband she returned to her parental house at Hubli along with her children on 27.3.1995 and started living with her father. The respondent husband though fully aware of this fact intentionally lodged a missing complaint so as to mislead everyone.

8. She denies all the allegations in the petition that her husband had created a hostile environment for her and her children. She alleged that when they were residing at Sulepet and started threatening her to send her son to an ordinary Kannada medium school so that he will not get proper education. Being afraid of this attitude of the husband, she decided to stay in Hubli along with her children so as to have the comfort and company of her parents to bring up her children by giving proper education to them. She never had any objection for her husband to get a transfer to Hubli or visit her and her children at Hubli. But it was the respondent husband who wanted her to live at Gulbarga only in the family house with an intention to torture her, her parents and the children on account of the strained relationship between his sister Sharanamma and her junior uncle Dr. Siddeshwar. She decided

to stay at Hubli. As she was unable to get the house of her husband and on 1st of November "her husband" joined her husband's house in the name of her husband's father. She was not allowed to stay there. She was not allowed to stay there. She was not allowed to stay there.

away from him. But she never intended to put an end to the matrimonial relationship. Act accordingly to her. 4% Of the date of filing of the Objection Statement, her daughter was aged 17 years old and her son was 12 years old. By the time the claim petition came to be filed they were living apart for a period of 6 to 8 years.

9. It is averred in the objection statement, that she had passed PUC when she got married and after leaving her matrimonial home in 1995 she joined and completed her Post graduation Course and Diploma in computers. She started working for a private company and the meagre income was earning as much as she could for her to maintain herself and her children. She was not able to demand anything from her husband. When she started to feel the pressure of the financial burden, she had to quit her job and started to live with her husband. She was not allowed to stay there. She was not allowed to stay there. She was not allowed to stay there.

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husband and therefore, the husband was not entitled for an order of custody. With these pleadings, both the parties brought on record oral and documentary evidence. They have not examined any other witnesses. The learned trial Judge, on appraisal of the entire material on record, proceeded to grant a decree of divorce on the ground that in spite of the intervention and efforts of the Court to reconcile the differences, she did not show any inclination to go back to her matrimonial home. The learned trial Judge has noted, that the wife while refusing to join her husband at Gulbarga insisted him to stay at Hubli or nearby place. According to the trial Court, the appellant wife also has decided in her evidence regarding her husband being inclined to the wife to not join her husband. The learned trial Judge has noted, that the wife while refusing to join her husband at Gulbarga insisted him to stay at Hubli or nearby place. According to the trial Court, the appellant wife also has decided in her evidence regarding her husband being inclined to the wife to not join her husband. The learned trial Judge has noted, that the wife while refusing to join her husband at Gulbarga insisted him to stay at Hubli or nearby place. According to the trial Court, the appellant wife also has decided in her evidence regarding her husband being inclined to the wife to not join her husband.

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happily with his wife and children at Banizalorc. were tried to lx brought on rccoid b ilk respondent husband only to convince the ('oufl that lie 1% right anti the 1le is at wrong. According to her, the tact that during the period of 7 years. i.e. between 1995 and the date of filing of divorce petition In 2002. not even on a single occasion he visited Ihc wife and children with the Intention of resuming his relationship with them. This would Indicate that he is not at all Interested In them and only to avoid payment of maintenance and to show to the Society that he Is a good person he has approached the Court seeking dissolution of the marriage.

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She also brought to the notice of the Court that Dr Sladdtshwar th Junior uncle of appellant is no more Sharanawwa and respondent imqbn d art living at thai-ga in hc a i same hmse As the respcr lert husbaidd haq takt n inluntaty reurenwnt. lie has private i tu (i i d vc . c. e t 1 1 TI.' ondent l'uband .,bjrttiu.i t',r ii e u 9.

'4 ins)IIV p tI(atHbli u din tot i ti apyrcher. ion • the nh I 4 ha iii Ha that I '.1 to go back to her husband at Gulbarga. the respondent would again resume the torture both physical and mental with much more 1coti r is genuine and once the Court goes through the contents of the letters written by the husband to her and her father, the clear Intention of the respondent husband would be understood and therefore, according to her the judgment and decree of divorce deserves to be set aside. According to the learned Counsel, when the appellant has justifiable cause to live separately even If there Is separation between husband and wife for a period of 7 years, there cannot be a decree for divorce when the respondent-husband is at fault and 1esponsibk for th separatlon between them With these arguments. slic sought for setting aside the judgment and a fth ia C iii)) owi'4.,t ecfpc I., A agaIn t us the lEe xx C nit I lot he ft on I nt in' ,i 'vid tr)k i'. t In (uQ n' t t A' tlx :1!t; i!i4' Ib, flit t-"sF)_aI lLlSbrbttd 1fjt tht ia1 (..ijjt MFA No20819/2008 18:

justifiable cause, cannot have her say even in this matter and therefore, the order of the trial Court granting decree of divorce is sustainable. According to him the letter% at Exhibits R. 1 to P.6 are indication of the anxiety shown by the respondent husband that his wife has taken away his children

and was living separately without any justifiable cause and there was no intention of treating the appellant- wife with cruelty at any point of time He contends that the reasoning of the trial Court is Just and proper and he seeks for dismissal of the appeal.

17. With this argument at our command. we have gone through the evidence of both parties and will see the content of exhibit 'i' brought on record.

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examination, lie persistently states that since 1995 after leaving Gulbarga both his children were continuing their education at 1-Tubli tas'int with their maternal grand parents along with their mother. He admits the strained relationship between his sister Sharanaznma and her husband Dr.Siddeshvar. He categorically denies the suggestion that on account of misunderstandings between his sister and her husband in order to take revenge, his wife was ill-treated at his hands not only by him but also by his family members After 1994 they started residing at Sulepeth after his transfer to the Government Hospital and he thins all the allegations that he is throwing the food and alcohol on her face lie denies suspecting the fidelity of his wife and he also denies his threats to her hit I e would put iCd rn ier at lit alnut h i ter and mothei "siting iheni .n "ilepeth hut clerics ill t at g us sift onthe istigitin)fhnotei nc 'su 1 I-k S o It f es the gp sri i t nal hig ar'.ui4cfln ru I',r Inc ir rj. tithiti rs"a to 'ta' iii it boarding school only In order to separate her from her mother thereby causing Immense misery to his wife He also denies filing Divorce Petition after conciliation talk before the court In the maintenance petition 19 According to him, the only problem with his wife was that she wanted to stay at liubli along with her parents and she was stubborn In her stand and this is the reason for their misunderstanding. lie admits filing appeal against the order of maintenance and also the efforts of the lion Me Judges of the High Court to reconcile the differences between them However the argument was that lx. offered U Inc iinth Ins wife only to evade payment f maintenanc to This infelut not with cal ntention x.hn tofulicathsc I Higi -w hetook di x 1 f ci rc.

:22 son who was at residential school In Belgaum being brought back by the wife According to the appellant/wlfr her husband was vent strict with the children and he was not talking to them with love and affection and therefore the children were all the time under fear. Therefore, she was of the opinion, love and affection must be shown to the children to make them grow In normal and proper way As a matter of fact, she expresses her opinion that because of the attitude of the husband towards the son, son was becoming stubborn day by day and she even was under apprehension that her son would not correct himself and he may become a bad element In the Society) The reason she

not possible for anyone to reconcile the differences between them. The letters at Ex.R. 1 to Ex RM. the first three letters are addressed to the father of the wife by the respondent/husband I' though he begins the letter with pranams to his father-In-law, the entire contents of the letter would go to show that he was finding fault with the upbringing of Bharathi by his in laws. he was finding fault with Dr.Siddeshwar. he was finding fault with his father- in law In not advising Dr.Siddeshwar and even goes to the extent of saying the sole purpose of marrying Bharathi was to see that the problems of his sister would be solved In one of the letters. he says that his father In law WUS xciv reluctant to offer his daughter to him hi marriage but Ix cause of the prcssun by the responcic nt/husband father ol I he dppt'llant agrn'd to Øvt her in nisu riage t hhn 1 for the huul of Hitarathi in ih air cil F ni I ii hetnep Br jd4 shinir ,Lnd lif', %--t r Sharananjnn. Bitt bf(1.1 itt t'c nF KI tx b s I lgharathi to 11cr parents mdicate that she was very much depressed by the state of affiurs between herself and her husband and qhe wac blaming her fate and becau'e of 'trained relationship between her uncle and her husband. her marital 11k was becoming worse day by day and the ill treatment caused to her was increasing day by day She wrote on several occasions that it was not possible with all the patience and tolerance to stay with her husband any more and if she would not leave the matrimonial home along with her children she would not like to continue her life and she may even take a strong step to commit suicide. The letter' indicate the mental torture caused to her by her husband by taking away Pooja to a boarding 'chool against her mother's wish and hc hiM's wish 'he as also v'xprcs i .

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exercise, her husband was trying to separate her children from her to cause mental agony In her. She has also stated that her husband used to say that as long as the life of his sister with Dr Slddeshwar is not happy, life of his wife I.e.. Smt.Bharathi wili also be unhappy and he would never visit Bharathi or her parents and he also requested them not to visit him in his life time. He even declares that If they were to visit him he would not mind going to any extent and advises them not to

do anything against his wish. In none of these six letters. we find any good gesturt on the part of the respondent/husband either towards his wife or at least towards his childien He has total hatred towai ds his in -ia s. fri his evidence. h says that there is nothing seriously wrong about hi wife ev ept t 1 he fact that she ikt ided ti si a at I Iubh wif.i her parents Mu"h p1 fur to k 'vuig the matriinniiiai hoiit.

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Gulbarga. the attitude of his family members and the husband towards the wife and children did not change. 24 As the behanour of husband was bec oming more and more intolerable, she at, unable to bear the torture at his hands and finally decided to leave him According to her. she left the house in 1995 after informing the husband but according to him without informing anyone she took away her children to stay with her parents. Whether she took away her children herself or she left matrimonial home after informing him. the reason for such step is very' much clear from the contents of Ex.R. I a to Ex.R.6.

2ii 'The learned Judge though reftrs to the be etter h a ntents wn iot at all di'c .issed and understood Tht 1cm . xprc ssed tin a.ony of appellant \vifr wloie hei puenl', I. 'All • flt% t.r undt rstoud ihe tlr..p,,. 13%ed 1w thr lit'sbtu 't getiiist ni' wile anal in laws Pu-- entire 'ijf 1V'MiId lfl(I't 'It.' oi .

1 i %LP' as In aut n Cd flit I MF' No.208)0/2008 substantiate the defence taken by her in the objection statement and the contents of Ex R 1 to Ex.6 do substantiate her qtand in establishing that respondent/husband was responsible for her to take extreme step of leaving the matrimonial home. Once the husband learnt that the wife and the children were living at Hubli right from 1995 to 2002. he did not even move his little finger to see that he gets back his wife and children. If he was a devoted father and loving husband. some affection must have been shown by his action. Afler filing maintenance petition during the conciliation proceedings he decided to file not only guardian petition for custody of the children but also divorce petition This vnuld only indicatt that he did not change Ins ittitude c e after eir I separatin f om hi àmily and h ai ted o thrc dt hiq 'uft and bla kmaii Iwi b av'nR that lit wo' ild lake .iw, a 'lit childi en iron.t lie' if 'lit i "Aid vot .tttt- u' i 1 t s dauri hr maunr'niut H' 'si lit Ofll- step . tlljrt ad h 1 ' i t vflrj lXtllllflfl nlio, r at 1 fg ft.

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